

1.

CASE #	CASE NAME	HEARING NAME
CVME2511978	TOM V. MADRIGAL	EX PARTE

Tentative Ruling: Grant. The Complaint is dismissed with prejudice as to Sussley-House (“Sussley”) and the Proposed Order/Judgment Order is Approved. Set a second OSC on September 21, 2026, re: Plaintiff’s failure to prosecute, as against the other defendants, with sanctions not to exceed \$1,500 and/or striking the Complaint. The Court will give notice on the OSC.

The subject complaint concerns Plaintiffs’ 4/19/2025 purchase of real property, located at 30204 Harvest Lane, Murrieta, CA, 02562 (the “Property”) from Reimbold. (Complaint, ¶ 13.) Madrigal represented Reimbold as her real estate agent, under the broker license of Sussley “and/or” FIV. (*Id.* at ¶ 14.) Plaintiffs allege all defendants played a role in concealing extensive damage from pet urine that was so extensive, it caused black mold throughout the walls and flooring. (*Id.* at ¶ 21.)

Procedural History: Sussley demurred to the entire complaint on the grounds that each cause of action failed to state facts sufficient, which was sustained with 30 days leave to amend on July 21, 2026. To date, Plaintiff has not filed an amended complaint.

Prior to the Demurrer Hearing: The original hearing date on the subject Demurrer was 4/30/2026. On 4/29/2026, Plaintiffs’ counsel filed a “Declaration in Response to Demurrer; and Request for Leave to Amend Complaint.” Therein, Mr. Graff requested 30 days to amend the complaint in order to address the issues raised in Sussley’s demurrer. On 4/30/2026, the court continued the hearing and order Sussley conduct a proper meet and confer effort. On 7/9/2026, Sussley’s counsel filed a declaration outlining the additional meet and confer efforts. The declaration states that on 6/4/2026, Mr. Graff again represented he would amend the complaint. (7/9/2026 Declaration of Saul Lopez, ¶ 10.) As of July 21, 2026, Plaintiffs had not filed an amended complaint and Mr. Lopez has been unable to get in contact with Mr. Graff since the 6/4/2026 phone call, despite repeated attempts.

First Cause of Action – Breach of Contract: The Complaint provided insufficient ultimate facts as to Sussley and his involvement in the allegations to survive the challenge to this cause of action.

Second Cause of Action – Fraud: The Complaint provided no allegations specific to Sussley to properly allege a cause of action for fraud.

Third Cause of Action – Latent Defect: There appears to be no independent cause of action for “Latent Defect.” The Complaint failed to identify any grounds for said cause of action and largely restates the allegations from the breach of contract and fraud causes of action.

Fourth and Fifth Cause of Action – NIED AND IIED: There were no allegations identifying any conduct specific to Sussley, let alone conduct that could be outrageous. As for the NIED claim, while the pleading requirement is lower than fraud or IIED, there were simply no facts alleged as to Sussley other than the belief that either he or FIV served as the broker for Madrigal. (Complaint, ¶ 14.)